

in Clause (J) thereof.

Wherever rules do not comply with the above observations, the same be revisited as our observations are based on mandate of the Act which must be complied with.

The writ petitions are disposed of in above terms.

SLP(C) No. 30659/2017 :

In view of order passed in W.P.(C) No.194 of 2012, the special leave petition is disposed of.

The award of cost imposed by the High Court is set aside.

T.C.(C) No. 129/2013 & T.C.(C) No. 32/2014

In view of order passed in W.P.(C) No.194 of 2012, the transfer cases are disposed of.

.....J.
[ADARSH KUMAR GOEL]

.....J.
[UDAY UMESH LALIT]

NEW DELHI
20th March, 2018

R E V I S E D

ITEM NO.15

COURT NO.11

SECTION PIL-W

S U P R E M E C O U R T O F I N D I A
R E C O R D O F P R O C E E D I N G S

Writ Petition(s) (Civil) No(s). 194/2012

COMMON CAUSE

Petitioner(s)

VERSUS

HIGH COURT OF ALLAHABAD & ANR.

Respondent(s)

WITH

T.C. (C) No. 129/2013 (XVI-A)

W.P. (C) No. 238/2014 (X)

T.C. (C) No. 32/2014 (XVI-A)

W.P. (C) No. 40/2016 (X)

W.P. (C) No. 205/2016 (X)

SLP(C) No. 30659/2017 (IV-A)

(IA No.107165/2017-CONDONATION OF DELAY IN FILING and
IA No.107169/2017-EXEMPTION FROM FILING O.T.)Date : 20-03-2018 These matters were called on for hearing
today.

CORAM :

HON'BLE MR. JUSTICE ADARSH KUMAR GOEL

HON'BLE MR. JUSTICE UDAY UMESH LALIT

For Petitioner(s) Mr. Prashant Bhushan, AOR
Ms. Neha Rathi, Adv.
Mr. Paranal, Adv.Mr. Sunil Kishore Ahya,
Petitioner-in-person

Mr. E. C. Agrawala, AOR

Mr. M. Yogesh Kanna, AOR

For Respondent(s) Mr. Raghavendra S. Srivatsa, AOR
Mr. Venkita Subramoniam T.R., Adv.
Mr. Rahat Bansal, Adv.
Mr. Amit A. Pai, Adv.
Mr. Goutham Shivshankar, Adv.

Mr. Abhinav Mukerji, AOR
 Mrs. Bihu Sharma, Adv.
 Ms. Purnima Krishna, Adv.

Mrs. D. Bharathi Reddy, AOR
 Ms. Rachna Gandhi, Adv.

Mr. Raja Chatterjee, Adv.
 Ms. Runa Bhuyan, Adv.
 Mr. Adeel Ahmed, Adv.
 Mr. Piyush Sachdev, Adv.
 Mr. Satish Kumar, AOR

Mr. Aniruddha P. Mayee, AOR
 Mr. Avnish M. Oza, Adv.
 Mr. Chirag Jain, Adv.

Mr. Rahul Gupta, AOR

Mr. Annam D. N. Rao, AOR
 Mr. Annam Venkatesh, Adv.
 Mr. Sudipto Sircar, Adv.
 Ms. Tulika Chikker, Adv.
 Mr. Rahul Mishra, Adv.

Mr. P.H. Parekh, Sr. Adv.
 Mr. Kshatrashal Raj, Adv.
 Ms. Ritika Sethi, Adv.
 Mr. Vishal Prasad, Adv.
 Ms. Tanya Choudhary, Adv.
 Ms. Aishwarya Dash, Adv.
 Ms. Pratyusha Priyardshini, Adv.
 Ms. Ravleen Sabharwal, Adv.
 Mr. Utkarsh Dixit, Adv.
 Mr. Anwesha Padhi, Adv.
 M/S. Parekh & Co., AOR

Mr. Ashok K. Srivastava, AOR

Mr. Sibbo Sankar Mishra, AOR

Mr. Ashok Mathur, AOR

Mr. T. G. Narayanan Nair, AOR
 Mr. C.N. Sreekumar, Adv.
 Mr. Amit Sharma, Adv.

Ms. Aruna Mathur, Adv.
 Mr. Avneesh Arputham, Adv.
 Ms. Anuradha Arputham, Adv.
 Ms. Simran Jeet, Adv.
 M/S. Arputham Aruna And Co, AOR

Mr. Vijay Hansaria, Sr. Adv.
 Mr. Shashank Mishra, Adv.
 Mr. P.S. Chandralekha, Adv.
 Mr. P. I. Jose, AOR

Mr. P.N. Mishra, Sr. Adv.
 Ms. Alka Sinha, Adv.
 Mr. Anuvrat Sharma, AOR

Ms. K. R. Chitra, AOR

UPON hearing the counsel the Court made the
 following O R D E R

W.P.(C) No.194 of 2012, W.P.(C) No. 238 of 2014, W.P.(C)
 No. 40 of 2016 & W.P.(C) No. 205 of 2016 :

The writ petitions are disposed of in terms of
 the signed order.

Pending applications, if any, are also stand
 disposed of.

SLP(C) No. 30659/2017 :

Delay condoned.

The special leave petition is disposed of in
 terms of the signed order.

Pending applications, if any, are also stand
 disposed of.

T.C.(C) No. 129/2013 & T.C.(C) No. 32/2014

The transfer cases are disposed of in terms of
 the signed order.

Pending applications, if any, are also stand
 disposed of.

(SWETA DHYANI)
 SENIOR PERSONAL ASSISTANT

(SUMAN JAIN)
 BRANCH OFFICER

(Signed order is placed on the file)

ITEM NO.15

COURT NO.11

SECTION PIL-W

S U P R E M E C O U R T O F I N D I A
RECORD OF PROCEEDINGS

Writ Petition(s) (Civil) No(s). 194/2012

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Petitioner(s)

VERSUS

HIGH COURT OF ALLAHABAD & ANR.

Respondent(s)

WITH

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W.P. (C) No. 238/2014 (X)

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W.P. (C) No. 40/2016 (X)

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SLP(C) No. 30659/2017 (IV-A)

(IA No.107165/2017-CONDONATION OF DELAY IN FILING and
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HON'BLE MR. JUSTICE UDAY UMESH LALIT

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Mr. Paranal, Adv.

Petitioner-in-person

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Mr. M. Yogesh Kanna, AOR

For Respondent(s) Mr. Raghavendra S. Srivatsa, AOR
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Mr. Goutham Shivshankar, Adv.

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Mr. Piyush Sachdev, Adv.
Mr. Satish Kumar, AOR

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Ms. Ritika Sethi, Adv.
Mr. Vishal Prasad, Adv.
Ms. Tanya Choudhary, Adv.
Ms. Aishwarya Dash, Adv.
Ms. Pratyusha Priyardshini, Adv.
Ms. Ravleen Sabharwal, Adv.
Mr. Utkarsh Dixit, Adv.
Mr. Anwesha Padhi, Adv.
M/S. Parekh & Co., AOR

Mr. Ashok K. Srivastava, AOR

Mr. Sibho Sankar Mishra, AOR

Mr. Ashok Mathur, AOR

Mr. T. G. Narayanan Nair, AOR
Mr. C.N. Sreekumar, Adv.
Mr. Amit Sharma, Adv.

Ms. Aruna Mathur, Adv.
Mr. Avneesh Arputham, Adv.
Ms. Anuradha Arputham, Adv.
Ms. Simran Jeet, Adv.
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 Mr. P. I. Jose, AOR

Mr. P.N. Mishra, Sr. Adv.
 Ms. Alka Sinha, Adv.
 Mr. Anuvrat Sharma, AOR

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UPON hearing the counsel the Court made the
 following O R D E R

W.P. (C) No.194 of 2012, W.P. (C) No. 238 of 2014, W.P. (C)
 No. 40 of 2016 & W.P. (C) No. 205 of 2016 :

The writ petitions are disposed of in terms of
 the signed order.

Pending applications, if any, are also stand
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SLP(C) No. 30659/2017 :

Delay condoned.

The special leave petition is disposed of in
 terms of the signed order.

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 disposed of.

T.C. (C) No. 129/2013 & T.C. (C) No. 32/2014

The transfer cases are disposed of in terms of
 the signed order.

Pending applications, if any, are also stand
 disposed of.

(SWETA DHYANI)
 SENIOR PERSONAL ASSISTANT

(SUMAN JAIN)
 BRANCH OFFICER

(Signed order is placed on the file)

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 10044 OF 2010

CENTRAL PUBLIC INFORMATION OFFICER,
SUPREME COURT OF INDIA

..... APPELLANT(S)

VERSUS

SUBHASH CHANDRA AGARWAL

..... RESPONDENT(S)

WITH

CIVIL APPEAL NO. 10045 OF 2010

AND

CIVIL APPEAL NO. 2683 OF 2010

J U D G M E N T

SANJIV KHANNA, J.

This judgment would decide the afore-captioned appeals preferred by the Central Public Information Officer ('CPIO' for short), Supreme Court of India (appellant in Civil Appeal Nos. 10044 and 10045 of 2010), and Secretary General, Supreme Court of India (appellant in Civil Appeal No. 2683 of 2010), against the common respondent – Subhash Chandra Agarwal, and seeks

to answer the question as to '*how transparent is transparent enough*'¹ under the Right to Information Act, 2005 ('RTI Act' for short) in the context of collegium system for appointment and elevation of judges to the Supreme Court and the High Courts; declaration of assets by judges, etc.

2. Civil Appeal No. 10045 of 2010 titled ***Central Public Information Officer, Supreme Court of India v. Subhash Chandra Agarwal*** arises from an application moved by Subhash Chandra Agarwal before the CPIO, Supreme Court of India on 6th July, 2009 to furnish a copy of the complete correspondence with the then Chief Justice of India as the Times of India had reported that a Union Minister had approached, through a lawyer, Mr. Justice R. Reghupathi of the High Court of Madras to influence his judicial decisions. The information was denied by the CPIO, Supreme Court of India on the ground that the information sought by the applicant-respondent was not handled and dealt with by the Registry of the Supreme Court of India and the information relating thereto was neither maintained nor available with the Registry. First appeal filed by Subhash Chandra Aggarwal was

¹ Heading of an article written by Alberto Alemanno: "How Transparent is Transparent Enough? Balancing Access to Information Against Privacy in European Judicial Selection" reproduced in Michal Bobek (ed.) *Selecting Europe's Judges: A Critical Review of the Appointment Procedures to the European Courts* (Oxford University Press 2015).

dismissed by the appellate authority vide order dated 05th September, 2009. On further appeal, the Central Information Commission ('CIC' for short) vide order dated 24th November, 2009 has directed disclosure of information observing that disclosure would not infringe upon the constitutional status of the judges. Aggrieved, the CPIO, Supreme Court of India has preferred this appeal.

3. Civil Appeal No. 10044 of 2010 arises from an application dated 23rd January, 2009 moved by Subhash Chandra Agarwal before the CPIO, Supreme Court of India to furnish a copy of complete file/papers as available with the Supreme Court of India inclusive of copies of complete correspondence exchanged between the concerned constitutional authorities with file notings relating to the appointment of Mr. Justice H.L. Dattu, Mr. Justice A.K. Ganguly and Mr. Justice R.M. Lodha superseding seniority of Mr. Justice A. P. Shah, Mr. Justice A.K. Patnaik and Mr. Justice V.K. Gupta, which was allegedly objected to by the Prime Minister. The CPIO vide order dated 25th February, 2009 had denied this information observing that the Registry did not deal with the matters pertaining to the appointment of the judges to the Supreme Court of India. Appointment of judges to the Supreme Court and the High Courts are made by the President of India as per the procedure

prescribed by law and the matters relating thereto were not dealt with and handled by the Registry of the Supreme Court. The information was neither maintained nor available with the Registry. First appeal preferred by Subhash Chandra Agarwal was rejected vide order dated 25th March, 2009 by the appellate authority. On further appeal, the CIC has accepted the appeal and directed furnishing of information by relying on the judgment dated 02nd September, 2009 of the Delhi High Court in Writ Petition (Civil) No. 288 of 2009 titled **Central Public Information Officer, Supreme Court of India v. Subhash Chandra Agarwal & Another**. The CIC has also relied on the decision of this Court in **S.P. Gupta v. Union of India & Others**² to reach its conclusion. Aggrieved, the CPIO, Supreme Court of India has preferred the present appeal stating, inter alia, that the judgment in Writ Petition (Civil) No. 288 of 2009 was upheld by the Full Bench of the Delhi High Court in LPA No. 501 of 2009 vide judgment dated 12th January, 2010, which judgment is the subject matter of appeal before this Court in Civil Appeal No.2683 of 2010.

4. Civil Appeal No. 2683 of 2010 arises from an application dated

10th

November,

2007 moved by Subhash
Chandra Agarwal

² (1981) Supp SCC 87

seeking information on declaration of assets made by the judges to the Chief Justices in the States, which application was dismissed by the CPIO, Supreme Court of India vide order/letter dated 30th November, 2007 stating that information relating to declaration of assets of the judges of the Supreme Court of India and the High Courts was not held by or was not under control of the Registry of the Supreme Court of India. On the first appeal, the appellate authority had passed an order of remit directing the CPIO, Supreme Court of India to follow the procedure under Section 6(3) of the RTI Act and to inform Subhash Chandra Agarwal about the authority holding such information as was sought. The CPIO had thereafter vide order dated 07th February, 2008 held that the applicant should approach the CPIO of the High Courts and filing of the application before the CPIO of the Supreme Court was against the spirit of Section 6(3) of the RTI Act. Thereupon, Subhash Chandra Agarwal had directly preferred an appeal before the CIC, without filing the first appeal, which appeal was allowed vide order dated 06th January, 2009 directing:

“... in view of what has been observed above, the CPIO of the Supreme Court is directed to provide the information asked for by the appellant in his RTI application as to whether such declaration of assets etc. has been filed by the Hon'ble Judges of the Supreme Court or not within ten working days from the date of receipt of this decision notice.”

5. Aggrieved, the CPIO, Supreme Court of India had filed Writ Petition (Civil) No. 288 of 2009 before the Delhi High Court, which was decided by the learned Single Judge vide judgment dated 02nd

September, 2009, and the findings were summarised as:

“84. [...]

Re Point Nos. 1 & 2 *Whether the CJI is a public authority and whether the CPIO, of the Supreme Court of India, is different from the office of the CJI; and if so, whether the Act covers the office of the CJI;*

Answer: The CJI is a public authority under the Right to Information Act and the CJI holds the information pertaining to asset declarations in his capacity as Chief Justice; that office is a “public authority” under the Act and is covered by its provisions.

Re Point No. 3: *Whether asset declaration by Supreme Court Judges, pursuant to the 1997 Resolution are “information”, under the Right to Information Act, 2005.*

Answer: It is held that the second part of the respondent's application, relating to declaration of assets by the Supreme Court Judges, is “information” within the meaning of the expression, under Section 2 (f) of the Act. The point is answered accordingly; the information pertaining to declarations given, to the CJI and the contents of such declaration are “information” and subject to the provisions of the Right to Information Act.

Re Point No. 4: *If such asset declarations are “information” does the CJI hold them in a “fiduciary” capacity, and are they therefore, exempt from disclosure under the Act*

Answer: The petitioners' argument about the CJI holding asset declarations in a fiduciary capacity, (which would be breached if it is directed to be disclosed, in the manner sought by the applicant) is insubstantial. The CJI does not hold such declarations in a fiduciary capacity or relationship.

Re Point No. 5: Whether such information is exempt from disclosure by reason of Section 8(1)(j) of the Act.

Answer: It is held that the contents of asset declarations, pursuant to the 1997 resolution—and the 1999 Conference resolution—are entitled to be treated as personal information, and may be accessed in accordance with the procedure prescribed under Section 8(1)(j); they are not otherwise subject to disclosure. As far as the information sought by the applicant in this case is concerned, (i.e. whether the declarations were made pursuant to the 1997 resolution) the procedure under Section 8(1)(j) is inapplicable.

Re Point No. (6): Whether the lack of clarity about the details of asset declaration and about their details, as well as lack of security renders asset declarations and their disclosure, unworkable.

Answer: These are not insurmountable obstacles; the CJI, if he deems it appropriate, may in consultation with the Supreme Court Judges, evolve uniform standards, devising the nature of information, relevant formats, and if required, the periodicity of the declarations to be made. The forms evolved, as well as the procedures followed in the United States—including the redaction norms—under the Ethics in Government Act, 1978, reports of the US Judicial Conference, as well as the Judicial Disclosure Responsibility Act, 2007, which amends the Ethics in Government Act of 1978 to: (1) restrict disclosure of personal information about family members of Judges whose revelation might endanger them; and (2) extend the authority of the Judicial Conference to redact certain personal information of judges from financial disclosure reports may be considered.”

6. On further appeal by the CPIO, Supreme Court of India, LPA No. 501 of 2009 was referred to the Full Bench, which has vide its decision dated 12th January, 2010 dismissed the appeal. This

judgment records that the parties were ad-idem with regard to point Nos. 1 and 2 as the CPIO, Supreme Court of India had fairly conceded and accepted the conclusions arrived at by the learned Single Judge and, thus, need not be disturbed. Nevertheless, the Full Bench had felt it appropriate to observe that they were in full agreement with the reasoning given by the learned Single Judge. The expression 'public authority' as used in the RTI Act is of wide amplitude and includes an authority created by or under the Constitution of India, which description holds good for the Chief Justice of India. While the Chief Justice of India is designated as one of the competent authorities under Section 2(e) of the RTI Act, the Chief Justice of India besides discharging his role as 'head of the judiciary' also performs a multitude of tasks assigned to him under the Constitution and various other enactments. In the absence of any indication that the office of the Chief Justice of India is a separate establishment with its own CPIO, it cannot be canvassed that "the office of the CPIO of the Supreme Court is different from the office of the CJI" (that is, the Chief Justice of India). Further, neither side had made any submissions on the issue of 'unworkability' on account of 'lack of clarity' or 'lack of security' vis-à-vis asset declarations by the judges. The Full

Bench had, thereafter, re-casted the remaining three questions as under:

“(1) Whether the respondent had any "right to information" under Section 2(j) of the Act in respect of the information regarding making of declarations by the Judges of the Supreme Court pursuant to 1997 Resolution?

(2) If the answer to question (1) above is in affirmative, whether CJI held the "information" in his "fiduciary" capacity, within the meaning of the expression used in Section 8(1)(e) of the Act?

(3) Whether the information about the declaration of assets by the Judges of the Supreme Court is exempt from disclosure under the provisions of Section 8(1)(j) of the Act?”

The above questions were answered in favour of the respondent-Subhash Chandra Aggarwal as the Full Bench has held that the respondent had the right to information under Section 2(j) of the RTI Act with regard to the information in the form of declarations of assets made pursuant to the 1997 Resolution. The Chief Justice did not hold such declarations in a fiduciary capacity or relationship and, therefore, the information was not exempt under Section 8(1)(e) of the RTI Act. Addressing the third question, the Bench had observed:

“116. In the present case the particulars sought for by the respondent do not justify or warrant protection under Section 8(1)(j) inasmuch as the only information the applicant sought was whether 1997 Resolution was complied with. That kind of innocuous information does not warrant the protection granted by Section 8(1)(j).

We concur with the view of the learned single Judge that the contents of asset declarations, pursuant to the 1997 Resolution, are entitled to be treated as personal information, and may be accessed in accordance with the procedure prescribed under Section 8(1)(j); that they are not otherwise subject to disclosure. Therefore, as regards contents of the declarations, information applicants would have to, whenever they approach the authorities, under the Act satisfy them under Section 8(1)(j) that such disclosure is warranted in "larger public interest."

7. The afore-captioned three appeals were tagged to be heard and decided together vide order dated 26th November, 2010, the operative portion of which reads as under:

"12. Having heard the learned Attorney General and the learned counsel for the respondent, we are of the considered opinion that a substantial question of law as to the interpretation of the Constitution is involved in the present case which is required to be heard by a Constitution Bench. The case on hand raises important questions of constitutional importance relating to the position of Hon'ble the Chief Justice of India under the Constitution and the independence of the Judiciary in the scheme of the Constitution on the one hand and on the other, fundamental right to freedom of speech and expression. Right to information is an integral part of the fundamental right to freedom of speech and expression guaranteed by the Constitution. Right to Information Act merely recognizes the constitutional right of citizens to freedom of speech and expression. Independence of Judiciary forms part of basic structure of the Constitution of India. The independence of Judiciary and the fundamental right to free speech and expression are of a great value and both of them are required to be balanced."